

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

DOCKET NO. 24-21

Served: February 7, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

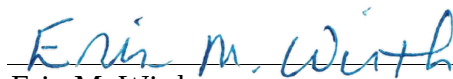
ORDER ENTERING PROTECTIVE ORDER

On February 6, 2025, the Respondent filed a motion with consent of the Complainant requesting entry of a protective order with a copy of the proposed order. The motion states that: “[i]ssuance of a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” Motion at 1.

The initial order issued in this proceeding states that: “The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” Initial Order at 5.

The proposed protective order is an agreement between the parties and is reasonable even though it may cover material that would not be entitled to confidential treatment under the Commission’s rules. For documents filed with the Commission, such expansive confidentiality will not be granted. Nothing in the order shall limit access to documents submitted in this proceeding from the Presiding Officer, the Commission, Commission staff and personnel, or reviewing courts or their staff.

The parties have established good cause to enter the proposed protective order. Accordingly, the joint motion is **GRANTED**, and it is hereby **ORDERED** that the protective order be entered as an order in this proceeding.


Erin M. Wirth
Chief Administrative Law Judge